



CHAPTER 3.

An Act to amend the National Health Insurance Act, 1936, so as to make certain persons under the age of sixteen eligible for medical benefit, to facilitate the provision of medical benefit to such persons and to other young persons, and for purposes connected with the matters aforesaid.

A.D. 1937.

[9th December 1937.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) If a person who has attained the school-leaving age, but has not attained the age of sixteen, is at the commencement of this Act, or at any subsequent date becomes, employed within the meaning of the National Health Insurance Act, 1936 (in this Act referred to as "the principal Act"), he shall, as from the commencement of this Act or, as the case may be, that subsequent date, become entitled to medical benefit under the principal Act as if he were an insured person and, notwithstanding that he may have ceased to be so employed, shall continue to be so entitled until either—

Employed boys and girls to be entitled to medical benefit.
26 Geo. 5. &
1 Edw. 8.
c. 32.

(a) the end of the half-year in which he attains the age of sixteen years and six months, or

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(b) the date on which he first becomes, or but for a certificate of exemption would have become, an insured person under section one of the principal Act,

whichever first occurs.

(2) For the purposes of this section, the expression "half-year" means a period of six months ending at the end of June or at the end of December, and the expression "the school-leaving age" means, in relation to any person, the age (not being less than fourteen years) at which, under the law for the time being in force, his parents cease to be under an obligation to cause him to attend school, or, in Scotland, to receive efficient education, unless there is some reasonable excuse :

26 Geo. 5 &
1 Edw. 8.
cc. 41, 42.

Provided that a person in respect of whom an employment certificate has been granted under the Education Act, 1936, or the Education (Scotland) Act, 1936, shall be deemed to have attained the school-leaving age on the date as from which the certificate took effect, notwithstanding that it may have subsequently ceased to have effect.

(3) Persons who are entitled to medical benefit by virtue of this section are in this Act referred to as "juvenile contributors".

Contribu-
tions by
juvenile
contribu-
tors, their
employers
and the
Treasury.

2.—(1) The provisions of subsection (1) of section twelve of the principal Act (which relates to contributions by insured persons, their employers and the Treasury) shall apply respectively in relation to boys and girls who are juvenile contributors as they apply in relation to men and women who are insured persons.

(2) The contributions payable in respect of juvenile contributors shall comprise contributions by the contributors and contributions by their employers at the following rates, that is to say—

contribution by the contributor—two pence per week;

contribution by the contributor's employer—two pence per week:

Provided that, in the case of juvenile contributors who are serving as seamen on foreign-going ships, the contribution by the contributor and the contribution by his employer shall each be one penny per week.

3.—(1) Contributions paid by or in respect of a juvenile contributor who has not joined an approved society within the prescribed time or who, having been a member of an approved society, has been expelled therefrom or has terminated his membership thereof in accordance with the provisions of the principal Act, and has not within the prescribed time joined another approved society (in this Act referred to as a “juvenile deposit contributor”) shall be credited to a special fund to be called “the Juvenile Deposit Contributors Fund”, and all sums payable in respect of juvenile deposit contributors for the purposes of medical benefit and towards the expenses of administration shall, except so far as they are payable out of moneys provided by Parliament, be paid out of the said fund.

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Financial
provisions.

(2) The sums required to meet expenditure properly incurred under this Act by the Minister, by approved societies and insurance committees, and by the Juvenile Deposit Contributors Fund, shall be paid out of the National Health Insurance Fund, and accordingly in subsection (2) of section one hundred and forty of the principal Act (which relates to the constitution of the National Health Insurance Fund) for the words “and the Deposit Contributors Insurance Section” there shall be substituted the words “the Deposit Contributors Insurance Section and the Juvenile Deposit Contributors Fund” and the like substitution shall also be made in subsection (3) of section one hundred and forty-one of the principal Act (which contains provisions with respect to accounts of approved societies, &c., in the National Health Insurance Fund).

(3) Provision may be made by regulations—

- (a) for prescribing the amounts to be charged and the payments to be made out of the Juvenile Deposit Contributors Fund in respect of the cost of medical benefit to juvenile deposit contributors, in respect of expenses incurred by insurance committees and the Minister in connection with the administration of that benefit and in respect of the administration of the said Fund;
- (b) for carrying from time to time to the credit of the Reserve Suspense Fund so much of any

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sum standing to the credit of the Juvenile Deposit Contributors Fund as is not required for the purposes of that Fund, and for crediting out of the Reserve Suspense Fund to the Juvenile Deposit Contributors Fund any sum required at any time to make good a deficiency in that Fund; and

- (c) for determining the date as from which a juvenile deposit contributor who joins an approved society shall be deemed to have become a member thereof.

Minister to retain certain sums out of weekly contributions.

4.—(1) Out of each weekly contribution paid by or in respect of a juvenile contributor who is a member of an approved society the sum of one farthing shall be retained by the Minister for the purposes mentioned in the next succeeding subsection.

(2) Out of the sums so retained by the Minister as aforesaid—

- (a) three-sixteenths of a penny in the case of each juvenile contributor shall be periodically apportioned by the Minister in the National Health Insurance Fund among the approved societies in proportion to the number of contributions credited, and the sums so apportioned to any society shall form part of the contingencies fund of the society; and

- (b) one-sixteenth of a penny in the case of each juvenile contributor shall be paid by the Minister to the Joint Committee and shall be carried by the Joint Committee to the Central Fund:

Provided that subsection (3) of section one hundred and forty-four of the principal Act shall apply in relation to sums retained by the Minister under this section as it applies in relation to sums retained by him under the said section one hundred and forty-four, the reference therein to certain paragraphs (b) and (c) being construed as including a reference to paragraphs (a) and (b) of this subsection.

Applica-
tions for
membership

5.—(1) Subject to the provisions of this Act, a person who has not attained the age of sixteen may

apply to an approved society for membership, notwithstanding that he has not become a juvenile contributor.

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in approved
societies by
boys and
girls who
have not
become
juvenile
contribu-
tors.

(2) Where, either before or after the commencement of this Act, a person has, before becoming a juvenile contributor and at a time when he had not attained the age of sixteen, delivered within the appropriate period and in proper form an application for membership to an approved society, or to the duly appointed agent of such a society, being a person receiving applications for membership, then if, within a period of three months after the date on which the application was so delivered, the society—

- (a) has delivered or sent by post to the applicant a notification in writing that his application has been accepted; or
- (b) has not delivered or sent by post to the applicant a notification in writing that his application has been rejected;

the applicant shall be deemed to be or to have been admitted a member of the society as on the date on which he becomes or became a juvenile contributor.

(3) Subject as hereinafter provided, any application to an approved society for membership, being an application made by a person before he becomes a juvenile contributor, shall, if it has been made before the beginning of the appropriate period, be of no effect :

Provided that where, within the appropriate period, a person who becomes a juvenile contributor before the second day of May nineteen hundred and thirty-eight has made applications in proper form to two or more societies for membership, then, if at any time between the twenty-first day of June nineteen hundred and thirty-seven and the date of the passing of this Act, he has applied in writing for admission to one or more of those societies, subsection (2) of this section shall have effect in relation to him as if any reference in that subsection to "the society" were a reference to that one of the societies aforesaid to which he has so applied in writing before the date of the passing of this Act or, as the case may be, to that one of them to which, or

A.D. 1937. — to the agent of which, his written application for membership was first delivered as aforesaid before that date.

(4) In this section the expression “the appropriate period” means—

(a) in relation to an applicant who becomes a juvenile contributor before the second day of May nineteen hundred and thirty-eight the period beginning with the date of the passing of this Act and ending immediately before the date on which he becomes a juvenile contributor; or

(b) in relation to any other applicant, the period of three months immediately preceding the date on which he becomes a juvenile contributor.

Duty of
education
authorities
to furnish
information
as to
medical
history of
young
persons.
11 & 12
Geo. 5. c. 51.

6. It shall be the duty, in England of every local education authority under the Education Act, 1921, and in Scotland of every education authority, to make arrangements for their officers to furnish, on the application of a medical practitioner or of an insurance committee on his behalf, for his confidential information, such particulars as to the school medical record of any young person whom he has accepted for treatment, and such other information in their possession relating to the medical history of that person, as the practitioner may deem necessary for the purposes of his functions in relation to the provision of medical benefit for that person.

In this section “young person” means a person under the age of eighteen years.

Application
of principal
Act.

7.—(1) This Act shall be construed as one with the principal Act.

(2) The provisions of the Schedule to this Act shall have effect for the purpose of extending certain provisions of the principal Act to juvenile contributors (with or without modification), preventing the application of certain other provisions to such contributors and otherwise making clear the application of the principal Act in relation to such contributors.

Application
to Northern
Ireland.

8.—(1) This Act, so far as it relates to matters with respect to which the Parliament of Northern Ireland

has power to make laws, shall not extend to Northern Ireland unless and until provision to that effect is made either— A.D. 1937.

(a) by an Act of the Parliament of Northern Ireland; or

(b) by an Order of the Governor of Northern Ireland in Council made in pursuance of such an Act,

and, if and when such provision is made, this Act shall apply to Northern Ireland subject to such exceptions and adaptations as may be specified in such Act or Order as aforesaid.

(2) For the purposes of section six of the Government of Ireland Act, 1920, this Act shall be deemed to be an Act passed before the appointed day. 10 & 11 Geo. 5. c. 67.

9.—(1) This Act may be cited as the National Health Insurance (Juvenile Contributors and Young Persons) Act, 1937, and shall be included among the Acts which may be cited together as the National Health Insurance Acts, 1936 and 1937. Short title, citation and commencement.

(2) This Act shall come into operation on the fourth day of April nineteen hundred and thirty-eight.

A.D. 1937.

Section 7.

SCHEDULE.

APPLICATION OF PRINCIPAL ACT.

1. In the following provisions of the principal Act, that is to say :—

- (a) subsection (1) of section seventeen and sections eighteen, twenty-one, twenty-three to twenty-seven, thirty and thirty-one (which relate to contributions and the payment thereof);
- (b) section thirty-two (in so far as it relates to medical benefit) and sections thirty-five, thirty-seven, thirty-nine and forty-one (which relate to the administration of medical benefit);
- (c) sections seventy-three, eighty-three, eighty-four, eighty-seven, eighty-eight and eighty-nine (except the proviso to subsection (4)) (which relate to approved societies and membership thereof);
- (d) subsection (3) of section ninety-one and sections ninety-six to one hundred (which relate to insurance committees);
- (e) sections one hundred and one and one hundred and two (being financial provisions relating to approved societies), and section one hundred and eighteen (relating to funds for insurance committees);
- (f) subsection (4) of section one hundred and thirty-five and section one hundred and thirty-seven (which relate to seamen neither domiciled nor resident in the United Kingdom);
- (g) sections one hundred and forty and one hundred and forty-one (relating to the National Health Insurance Fund); and
- (h) Parts VII, VIII, IX and XI (which contain respectively provisions as to central administration, legal and miscellaneous provisions and provisions as to the application of the Act to Scotland and to Wales);

but in no other provisions, references to the expressions mentioned in the first column of the following table shall be construed as including references to the expressions respectively set opposite thereto in the second column of that table :—

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TABLE.

1.	2.
Insured persons -	} juvenile contributors.
Employed contributors -	
Deposit contributors -	juvenile deposit contributors.
Contributions -	contributions payable by or in respect of a juvenile contributor.
Employers' contributions -	contributions payable by an employer in respect of a juvenile contributor.
Insurance business -	} business in respect of juvenile contributors.
State business -	

2. References in the principal Act to claims of, or claims by or on behalf of, deposit contributors shall, in relation to juvenile deposit contributors, be construed as references to claims made by the Minister on behalf of such contributors.

3. References in the principal Act to insurance cards, insurance books and insurance stamps shall be construed as including references to cards, books and stamps used for paying contributions payable in respect of juvenile contributors, and in subsection (2) of section one hundred and fifty-four of the principal Act (which relates to unclaimed moneys received from the sale of stamps) there shall be inserted, after the words "the Deposit Contributors Insurance Section" the words "or the Juvenile Deposit Contributors Fund."

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